

Sri Manik Rudra Paul vs The State Of Tripura on 20 January, 2026

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Bench: T. Amarnath Goud

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HIGH COURT OF TRIPURA

A_G_A_R_T_A_L_A

Crl. A(J) No. 35 of 2024

Sri Manik Rudra Paul, son of Sri Jatindra Rudra Paul, resident of Kaliram, Lakhandepa, P.S. Melaghar, District: Sepahijala Tripura.

.....Appellant

-V E R S U S-

The State of Tripura, represented by its Secretary cum Commissioner, Department of Home, Government of Tripura, P.O. Kunjaban, P.S. New Capital Complex, District: West Tripura.

..... Respondent.

B_E_F_O_R_E HON'BLE JUSTICE DR. T. AMARNATH GOUD HON'BLE MR. JUSTICE S. DATTA PURKAYASTHA For Appellant(s) : Mr. D. Sarkar, Advocate.

Ms. P. Goswami, Advocate.

For Respondent(s)	:	Mr. Raju Datta, P.P.
Date of hearing and delivery of judgment and order	:	20.01.2026
Whether fit for reporting	:	YES/NO

JUDGMENT & ORDER [ORAL]

[Dr. T. Amarnath Goud, J]

[1] Heard Mr. D. Sarkar, learned counsel appearing for the appellant also heard Mr. R. Datta, learned P.P. appearing for the respondent- State.

[2] This is an appeal filed under Section-374 of Cr. P.C. challenging the legality and validity of judgment and order of conviction and sentences dated 13.01.2025 passed by the learned Addl. Sessions Judge, Sonamura Sepahijala Tripura in connection with case No. ST 20 (WT/S) of 2011, whereby and whereunder, sentenced the convict appellant for commission of offence punishable under Section-302 of IPC to suffer rigorous imprisonment for life and also to pay a fine of Rs.20,000/- for the said offence and in default, to undergo further rigorous imprisonment for one year.

[3] The prosecution was launched out of a written complaint lodged by Smt. Manju Rudra Paul, the wife of Manik Rudra Paul, Kaliram village, Ward No.1, Lakhandepa under Melaghar police station, Sonamura Sub-Division, Sepahijala District, Tripura against her husband Sri Manik Rudra Paul, S/O Sri Jatindra Rudra Paul and her parents-in-law namely, Smt. Maya Rani Rudra Paul, wife of Jatindra Rudra Paul and Jatindra Rudra Paul, S/O Late Jogesh Rudra Paul, Kaliram Ward No.I, Lakhandepa under Melaghar police station to the effect that about 10 years back from the date of incident of this case her marriage was solemnized with accused Manik Rudra Paul and after a lapse of one month of her marriage with the accused cruelty i.e mental and physical harassment started upon her. She also alleged that she was the mother of two female child and since the day of the birth of her second daughter cruelty and harassment by the accused persons accelerated, while her second daughter was aged about two months only. After the birth of one month of her second daughter informant went to her elder brother's house, followed by a dispute with her husband and after a lapse of 20 days of her stay in the elder brother's house, on the advised of Arun Das, a member of the panchayet of the accused persons, she returned back to her matrimonial home on 30.01.2011 and on 31.01.2011, it was Monday, at about 05:00 A.M. While she was working in her kitchen, taking her baby on her lap and cooking rice, her husband Manik Rudra Paul entered into the kitchen and suddenly snatched away her daughter from her lap and hurriedly went to their main bed room of their dwelling hut and administered poison in the mouth of her daughter by the father of the baby i.e. by her husband, the accused herein.

[4] She also further alleged that while she was in the kitchen, she could understand that her daughter was vomiting and thereby she rushed to the main bed room of their dwelling hut and somehow snatched away her baby from the lap of her husband. Subsequently, she came out of the bed room and started shouting and raised alarm and neighbouring the people appeared in their house upon hearing her cry and shouting. Her parents-in-law i.e. Smt. Maya Rani Rudra Paul and Jatindra Rudra Paul, were present in the house but they maintained silence. She could somehow managed an auto rickshaw with help of the neighbouring people and taken away her daughter to Melaghar Hospital and admitted her there but medical officer on duty informed her that her daughter Puja died. She lastly, alleged that accused persons subjected her to ill treatment since her marriage and her daughter was killed by administering poison by her husband.

[5] Upon receipt of the aforesaid written Ejahar, O/C Melaghar Police Station, registered Melaghar P.S. case No.13 of 2011 under Sections- 498A/302/34 of IPC against the accused persons, as mentioned above and the investigation of the instant case was endorsed to Sub-Inspector Dipal Rudar Paul. During investigation, he perused the Ejahar and went to the Melaghar Hospital and found the informant Smt. Manju Rudra Paul and Ranjit Rudra Paul (the brother of informant) were

there in the hospital and he examined them and recorded their statement under Section-161 Cr.P.C.

[6] Investigating officer also conducted inquest (Exhibit-3/2 as a whole) over the dead body of the deceased Puja Rudra Paul, aged about two months, in presence of the witnesses and the informant and the dead body was sent to the hospital morgue with the inquest to conduct postmortem examination. During investigation on the day, the investigating officer visited the place of occurrence and prepared the hand sketch map and index in separate sheets of paper (Exhibit-6 and Exhibit-7) and also seized a white plastic bottle, which contained some quantity of pesticides in presence of the witnesses (Exhibit-2/2). Investigating officer also examined few other witnesses and recorded their statement under Section-161 of Cr.P.C. He also seized the viscera of the deceased on 01.02.2011 in presence of the witnesses under a separate seizure list (Exhibit-8) and the viscera were sent to TSFSL, Agartala, for examination and also collected report thereof.

[7] During investigation, investigating officer also made a prayer before the learned SDJM, Sonamura, West Tripura to record the statement of the informant Smt. Manju Rudra Paul, the mother of the deceased baby and the learned Magistrate recorded her voluntary statement under Section- 164(5) of Cr.P.C. and he also collected forensic report, as well as, the postmortem report from the concerned.

[8] After completion of the investigation and having been satisfied that a prima facie case established against the accused persons namely, Sri Manik Rudra Paul, Sri Jatindra Rudra Paul and Smt. Maya Rani Rudra Paul for the commission of the offences punishable under Sections-498A/302/34 of IPC submitted charge sheet vide charge sheet No.31/2011 dated 27.03.2011 under Sections-498A/302/34 of IPC and during investigation accused Maya Rani Rudra Paul and Manki Rudra Paul were arrested on 31.01.2012 and they were forwarded before the learned Court below but as the accused Jatindra Rudra Paul was absconding, on completion of investigation, the I.O. submitted charge sheet against the accused persons namely, Manik Rudra Paul, Smti. Maya Rani Rudra Paul showing Jatindra Rudra Paul is absconder.

[9] Upon receipt of the aforesaid charge sheet, learned Sub- divisional Judicial Magistrate, Sonamura, West Tripura pleased to take cognizance of the offences under Sections-498A/302/34 of IPC and transferred the case record to the Court of the learned Judicial Magistrate, First Class, Sonamura, West Tripura by an order dated 26.04.2011. On 31.05.2011 the learned Judicial Magistrate, First Class, Sonamura, West Tripura after observing all the formalities proceeded with the case and accused copies were supplied to the accused persons and upon hearing both sides on the point of commitment, being satisfied that the offences are triable by the Court of Sessions, the case was committed to the Sessions Court.

[10] Upon receipt of the case record on 21.06.2012 from the learned Court of the Judicial Magistrate, First Class, it was registered vide Case No. ST 20(WT/S) of 2011 and subsequently, on 06.07.2011 upon hearing both sides on the point of framing of charge, being prima facie satisfied, charges under Sections-498A/302/34 of IPC were framed in two heads in a separate sheet of paper against the accused persons and the contents of the charges were read over and explained to them in Bengali in the open Court, to which, they pleaded not guilty and claimed to be tried.

[11] Having heard both the parties and on perusal of the material evidence on record, the learned Court below has observed as under:

"Accordingly, considering all the aspects in the given case I sentenced the convict to suffer rigorous life imprisonment for the commission of offence punishable under Section-302 of the Indian Penal Code and the convict is also liable to pay a fine of Rs.20,000/- (Rupees twenty thousand) for the said offence and in default of payment such fine he shall further undergo rigorous imprisonment for a further period of one(1) year. I think this will met the ends of justice.

Convict undergone detention during investigation and trial from 01.02.2011 till 19.05.2011, accordingly, the period undergone by the convict is hereby set off with the sentence.

Upon satisfaction of the sentence as above in compliance to the provision of the Code of Criminal Procedure, 1973 the convict shall be discharged.

Seized alat may be disposed of immediately after the expiry of the appeal period."

[12] The appellant herein, being aggrieved by and dissatisfied with the same, has preferred this present appeal before this Court for ends of justice.

[13] Mr. D. Sarkar, learned counsel appearing for the appellant has submitted that the learned Court below did not consider the mental position of the appellant at the time of incident. From the evidence of the prosecution witness it is found that the appellant was suffering from mental distress for considerable period. The story came out from the prosecution witnesses regarding family disputes between the informant and convict person and it is also came out from the prosecution witnesses that the convict appellant was living in a separate mess. The prosecution witnesses further corroborate the story that after marriage the informant tried to separated the convict appellant from his joint family and the informant was in a habit of leading free life and was unruly off and on left the matrimonial home and did not take care of her husband even in respect of cooking and other house half works.

[14] The defence also suggested the prosecution witness that out of family dispute the informant lodge this false complain against the convict appellant. PW-8 Sri Lilip Debnath in his cross examination clearly states that he is a dealer of ration shop and sometimes they settle the village disputes and to attend the meeting. After marriage of Manik the family disputes cropped up due to fault of the wife of Manik. Though Manik purchase some land in the locality of his father-in-law, ultimately he did not agree to settle their. This part of evidence clearly shows that there was some pressure upon the appellant by the in laws and the informant to reside in the locality of his in laws.

[15] PW-1 Sri Arun Das was is a member of the panchayat, who stated that the house of appellant is situated about one km away from his house father and mother of accused Manik Rudra Paul are also living in a separate mess he also admitted that there were some family dispute and that was taken

before the panchayat for settlement but failed to settle the disputes. He also in his cross examination stated that accused is living separately in a separate mess.

[16] It is has been further contended that PW-7 also categorically supported the family disputes which was started after about 1.5 years of marriage. He also stated that on this issue of dispute there was meeting and in the meeting PW-7 was also present. In the meeting the present appellant was asked to live separately with his wife from his parents and accordingly, the appellant started living separately with his wife. After birth of second baby the dispute increased and the informant left the matrimonial house. Thereafter, the appellant approached her on different occasions to negotiate the matter. PW-7 also went to father-in-laws house of the appellant and requested to his wife to come back.

[17] Mr. R. Datta, learned P.P. has vehemently opposed the arguments made on behalf of the convict appellant and has submitted that the evidences which are relied by the learned Court below are completely justifiable. There was no contradiction or omission in the depositions of the witnesses more particularly, they are corroborating each other. The version of mother of the child cannot be discarded as she was present at the time of incident. As such, he prayed to dismiss the appeal by confirming the conviction as observed by the learned Court below.

[18] In view of above, let us relook into the depositions of the witnesses once again. From the evidence of PW-4, the mother of the deceased, it reveals that about 13 years back from the date she deposed before this Court, her marriage was solemnized with Manik Rudra Paul as per Hindu rites and customs and after a lapse of one month of her marriage, her husband and the parents-in-law started cruelty upon her. She gave birth of a female child who is now aged about 10 years and subsequently in the later part of 2010 she further gave birth of an another female child and thereby a dispute started on the issue of giving birth of a further female child. It also further reveals that from her evidence as she gave birth of another female child, the accused persons accelerated the limit of torture upon her and when her second daughter was aged about one month she had to leave her matrimonial home and she went to Belonia to her brother's house and started living there in her brother's house and remained therein for 20 days. One Arun Das (PW-2), a member of the panchayet interfered with their matrimonial dispute and on the request of the said PW-2 she went back to her matrimonial home and her brother Ranjit Rudra Paul i.e. PW-5 accompanied her.

[19] From the evidence of PW-4 it further reveals that subsequently, with the help of the villagers managed and auto rickshaw she was removed her daughter to Melaghar Hospital but her husband and the parents-in-law were reluctant to go with her to the hospital and thereby the villagers accompanied her to the hospital. It further appears from the evidence that the medical officer on duty of Sonamura Sub-divisional hospital at Melaghar given all the treatment to her daughter and pesticide was found present in the stomach of the baby and despite best endeavour after all the baby died in the hospital.

[20] From the cross-examination of the witness, it reveals that her marriage was solemnized in the year 2000 A.D in the month of Baishak and she started living in separately in a separate mess with her husband and daughters from one and half year of her marriage. One of unmarried sister- in-law

started living with her parents-in-law. Defence case is that the witness (P.W.-4) from the very beginning was reluctant to stay in their matrimonial home and she was interested to reside separately from her parents-in-law and since her marriage for a maximum period of time she resides in her parents' house along with her daughters. She used to instigate her husband to separate their parents-in-law. As her husband purchased a land near the parent's house of the witness, accused was approached by her and others to settle permanently over the land he purchased but as her husband did not pay any heed to such proposal the witness became unruly and she was reluctant towards her parents-in-law and in respect of cooking and other household works.

[21] Arun Das, a member of the panchayet was examined as PW-2 and from his evidence it also reveals that he is a member of Rajib Nagar panchayet under Melaghar police station i.e. Arun Das (PW-2) is the member of the village panchayet of the accused persons. From his evidence it further reveals that it is true that the parents-in-law of the informant were living separately in a separate mess since long back and he had knowledge about the family dispute of the accused Manik Rudra Paul and the informant Smt. Manju Rudra Paul. It also reveals from his evidence that it was also in his knowledge that accused Manik Rudra Paul already having a female child and their family dispute were on many occasion placed before the panchayet and other local people and thereby the panchayet for settlement and the local people and the panchayet tried to settle to their family dispute to their level best.

[22] PW-5 supported the evidence of PW-4 and stated that on 30.01.2011 he accompanied his sister along with the two daughters of her sister and went to the house of Manik Rudra Paul on the request of PW-2. PW-2 stated that he tried to settle the dispute between the accused and PW-4, the informant herein, but he did not state that ever he requested PW-4 to go back to her matrimonial home.

[23] However, whenever a criminal case and criminal psychology is concerned nothing should be considered as absurd and impossible in a crime, thereby, this Court would like to go through the evidence of the other witnesses to find out the real truth and the real culprit.

[24] PW-6 deposed that during their presence in the hospital premises some of the people while asked the accused appellant about the incident, the appellant averred that he himself administered poison to his daughter and he also told them that no person should do such heinous crime what he has done to his daughter. It is not unnatural to a father to say that no person should do such a heinous crime what he has done, after all deceased is the baby of the appellant.

[25] While the accused appellant administered pesticide to his daughter, he did the crime in a devil's instinct of human. Every human being has devil's, as well as human instinct. Immediately, after the death of his daughter, due to his cause, his human instinct came out suppressing the devil's instinct and thereby the accused made the confession of his act.

[26] PW-3 Badal Sarkar, who is the neighbour, the witness belong to Kaliram, Melaghar and from his evidence it reveals that on 31.01.2011 i.e. on the very day of the incident, some police personnels taken him to the house of the accused Manik Rudra Paul from Kaliram Bazar and police entering

into the dwelling hut of the accused Manik Rudra Paul seized a plastic bottle and police stated to them they recovered the bottle from the house of accused Manik Rudra Paul and thereby his signature was obtained on the seizure list. Whereas, in cross-examination the witness stated that he did not entered into the dwelling hut of the accused appellant. The evidence of PW-3 is little bit hesitant.

[27] Amulya Debnath was examined as PW-7, who is also belong to Kaliram, Melaghar and from his evidence it reveals that he is neighbour of the accused. From the evidence of PW-7 it reveals that after a lapse of one and half year of the marriage between the accused and the informant (PW-4) dispute started in their family and PW-7 and others tried to settle the dispute and as per their advise accused Manik Rudra Paul stated living with his wife and children. It also reveals that after the birth of second daughter again dispute started between the wife and the husband, PW-4 left her matrimonial home. PW-7 also stated that accused Manik Rudra Paul approached to him and others to negotiate the matter and thereby he along with and others went to the house of the father-in-law of the accused and on their request PW-4, the wife of the accused returned back to her matrimonial home along with her daughters.

[28] Dilip Debnath was examined as PW-8, who is also a resident of Kaliram, under Melaghar police station. This witness while examined by the prosecution stated that he is a neighbour of the accused and on 31.01.2011 in the afternoon he came to know that the younger daughter of the appellant was died in the hospital and thereby the witness was declared hostile but the prosecution failed to creak the evidence while cross-examined.

[29] PW-10 is the investigating officer who upon completion of the investigation submitted charge sheet against the accsued persons as stated about and the investigating officer also flatly denied the suggestion that informant ever had any intention to make her husband „ghar jamai and the informant ever had any intention to grab the rubber plantation belong to her husband and the property of her father-in-law.

[30] PW-11 on 09.02.2011 was posted as Sr. Scientific forensic examiner at TSFSL at Narsinghar, who examined the viscera and upon examination of the viscera he submitted the report and from his report it reveals that presence of organochoro group of pesticides was found present in the viscera except one of the viscera i.e. viscera of the liver.

[31] PW-12 also similarly stated that death was caused due to organophosphorous poisoning which was accidental or may be homicidal or may be administered by someone else and it was homicidal in nature. It is PW-12 who collected the viscera and PW-10 sent the viscera for Examination to TSFSL.

[32] On the basis of the aforesaid discussion and having gone through the overall discussion and observation made by the learned Court below, we are of the opinion that the intention of the accused to kill his daughter was very much clear in the present case. His plan was ready, he was just waiting for the suitable time and while he got the opportunity on 31.01.2011 he workout his plan and administered such a type of pesticide to confirm the death of the baby. There is sufficient evidence against the accused appellant for the commission of the offence under Section-302 of IPC.

[33] In the light of above it is observed that it is a case of totally depending on the circumstantial evidence and in a case of circumstantial evidence Court should lean towards life imprisonment. Every murder is brutal and brutality alone would not be a ground for judging whether the case is one of the rarest of the rare cases. In the given case convict had no criminal antecedents and or any previous criminal history, he is also not a professional killer and considering all the aspects in the given case, we do not find that he will be an ardent criminal and a menace to the society. Considering all the balancing factor, we find the scale of justice tilts towards the convict, thus, it is opined that it is not necessary what is judge but also as to what the accused deserves keeping in view the impact on the society at large.

[34] Now we are to conclude our decision on the basis of material evidence on record. In our ultimate analysis, it is crystal clear that there is no reason as to why the continuity of the chain of circumstances and the complaint made against the appellant to be disbelieved. The witnesses supported the entire case of the prosecution with regard to the commission of offence by the appellant herein and furthermore, we find that the statement made by the witnesses needs no interference. Consequently, we find no reason to interfere with the observations made by the learned Court below and thus, the same is affirmed on the strength of evidence of PW-4 and also the statement recorded under Section-164 of Cr. P.C. The complaint was unshaken and the evidence of the PWs-7 and 8. Their version is well supported by other witnesses, more particularly, the deposition of the doctor and the forensic evidence. In the 313 statement nowhere in his defence, despite making a specific question by the Court, the accused convict has not stated anything in his defence except saying false.

[35] In the result, the appeal stands dismissed. As a sequel, miscellaneous applications pending, if any, shall stand closed. Send down the LCRs forthwith.

S. DATTA PURKAYASTHA, J

DR.T. AMARNATH G

A.Ghosh

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